STANDARD OPERATING PROCEDURE	G-2300

SARPY COUNTY
SHERIFF'S OFFICE
PAPILLION * NEBRASKA
GREG LONDON
SHERIFF

DATE ISSUED	DATE REVISED	DATE REVIEWED
12/04/06	**07/27/22**	02/02/25

APPROVED:

GREG LONDON

CHAPTER TITLE	RESOURCES
GENERAL	FOP CONTRACT RULES OF THE SARPY COUNTY SHERIFF'S OFFICE MERIT COMMISSION GARRITY V. NEW JERSEY, 385 US 493 (1967) NLRB V. WEINGARTEN, INC., 420 U.S. 251 (1975) MIRANDA V. ARIZONA, 384 US 436 (1966)

SUBJECT	CROSS REFERENCE
EMPLOYEE RIGHTS AND REQUIREMENTS	G-2100 COMPLAINT PROCEDURE G-5300 PERSONNEL FILES

I. Purpose:

The purpose of this policy is to establish and advise employees of their rights and requirements in regard to complaints and discipline.

II. Policy:

In order to balance the best interest of the community, the Sheriff's Office and its employees, it is imperative employees know and understand their rights and requirements if they are the subject of or a witness in an investigation. This knowledge serves to protect all concerned parties and assures a proper determination and conclusion. These provisions pertain to all employees and are intended to serve as a standard by which all employees shall conduct themselves in the course of an investigation.

III. Procedures:

A. Employees Requesting an Investigation: An employee has the right to request an investigation if he or she feels justifiably threatened by a false accusation or a contrived situation involving false evidence. A request of this nature shall be made to the Professional Standards Commander.

B. Rights and Requirements During Internal Investigation/Questioning:

1. Employees may be ordered to make a statement or answer questions truthfully and completely concerning an investigation (Garrity Rule). If an employee fails to comply, he or she shall be subject to disciplinary action, up to and including termination.

2. If the Garrity Rule is invoked, any information an employee provides may be used against him or her in a disciplinary action or a civil proceeding. However, this information may not be used against him or her in any criminal proceeding.

3. Any voluntary statements or confessions by an employee prior to Garrity or Miranda warnings being provided are admissible in all subsequent criminal and civil action against him or her.

4. Miranda rights shall be given to an employee if he or she is accused of a criminal matter and is being questioned in a custodial setting (any circumstance where a reasonable person would consider himself or herself deprived of his or her freedom or action in a significant way.)

5. The accused employee does not have the right to legal counsel during an interview regarding an investigation of non-criminal conduct or when the Garrity Rule is invoked. The Sixth Amendment right to counsel does not apply to civil or administrative matters. However, the accused employee is entitled to FOP representation during an interview under the following conditions (Weingarten Rights):

a) The employee must reasonably believe the interview shall result in disciplinary action against him or her.

b) The employee must request representation.

c) The right to representation cannot unduly interfere with the legitimate needs of the investigation.

6. Before an employee is questioned or interviewed concerning an Internal Affairs investigation, he or she shall be informed about the nature of the investigation, and whether he or she is the subject of the investigation or a witness.

7. Interviews and questioning of employees shall be conducted in a professional manner. Statements from employees will not be taken in a coercive manner.

8. An employee shall, upon request, receive a copy of his or her written or recorded statement at no cost to the employee no less than 24 hours prior to his or her Loudermill hearing.

9. Upon the conclusion of an investigation, the accused employee who had prior notification of an investigation shall be notified in writing about the case's classification**.**

10. The County, the F.O.P. or the Sheriff shall not make any press releases regarding on-going internal investigations or those of a non-criminal nature.

C. **Right to Appeal:** The accused employee may accept the imposed discipline or file an appeal in accordance with the FOP Lodge #3 Collective Bargaining Agreement and if applicable, the Rules of the Sarpy County Sheriff's Office Merit Commission.

D. **Responsibilities of Employees:**

1. An employee who has knowledge that would further a complaint or an investigation shall notify the Professional Standards Commander by memorandum as soon as he or she becomes aware of the incident. The memorandum shall include all of the information known by the employee related to the investigation.

2. All sworn personnel are required to understand and follow complaint procedures and to provide complete and accurate information concerning complaint procedures to any citizen who inquires about the Sheriff's Office procedures regarding complaints. Any non-sworn employee shall refer such inquiries to his or her sworn supervisor.

3. All sworn personnel assigned to the Road Patrol Division shall have available informational material regarding the complaint process and Formal Complaint forms at all times. Any request by a citizen for informational material or a Formal Complaint form shall be granted as soon as practicable.

E. **Annual Training and Review:** The Policy Administrator shall ensure all employees review the Complaints and Discipline section of the policy manual annually. Additionally, all sworn personnel shall also undertake training concerning the contents of those policies, specifically the intake and investigation of complaints.